

25STCV04157 25STCV04157

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Department: 407

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Case Number: 25STCV04157 Hearing Date: July 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

30, 2026 TRIAL

DATE: N/A

CASE: Subash Dsouza v. American Honda Motor Co., Inc.

CASE NO.: 25STCV04157

PLAINTIFF'S

MOTION TO STRIKE AND/OR TAX DEFENDANT'S COSTS

MOVING PARTY: Plaintiff

Subash Dsouza

RESPONDING PARTY: N/A

I. BACKGROUND

This is a lemon law case. On or about September 21, 2019, Plaintiff Subash Dsouza ("Plaintiff") entered into a warranty contract with Defendant American Honda Motor Co., Inc. ("Defendant") for a 2020 Honda Insight ("Vehicle"). (FAC, ¶ 6.) Plaintiff alleges that defects and nonconformities to warranty manifested themselves and the value of the Vehicle is worthless and/or de minimis. (Id. at ¶¶ 15-16.)

On February 13, 2025, Plaintiff filed a Complaint. On January 5, 2026, Plaintiff filed a First Amended Complaint ("FAC").

On February 2, 2026, Plaintiff filed a request to dismiss the entire action of all parties and all causes of action without prejudice. On February 9, 2026, the dismissal was entered.

On March 24, 2026, Defendant filed a Memorandum of Costs (Summary).

On April 8, 2026, Plaintiff filed this Motion to Strike and/or Tax Defendant's Costs ("Motion").

No opposition has been filed.

II. LEGAL STANDARD

Code of Civil Procedure section 1032, subdivision (b), provides: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, Rule 3.1700, subd. (a)(1).) "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, Rule 3.1700, subd. (b)(1).)

"If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. The burden then shifts to the objecting party to show them to be unnecessary or unreasonable." (Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 693 [internal citations omitted].) "In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show [the costs] to be

unnecessary or unreasonable. (Foothill-De Anza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29 [internal citations and quotations omitted].)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. However, [i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant, and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131 [internal citations and quotations omitted].) 22

Costs and expenses may be recovered by a prevailing buyer under Song-Beverly. (See Civil Code §1794(d).) Section 1794(d) provides:

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

III. DISCUSSION

A.

Timeliness of the Motion

A motion to tax costs must generally be served and filed within 15 days after service of the memorandum of costs. If the cost memorandum is served electronically, Code of Civil Procedure section 1010.6(a)(4) extends this 15-day period by two court days. (Code Civ. Proc. § 1010.6(a)(4).) Timeliness is critical. A party’s failure to file a timely, stand-alone motion to tax costs results in forfeiture of arguments against the claimed costs. (Briggs v. Elliot (2023) 92 Cal.App.5th 683, 692.)

The

memorandum of costs was served electronically on March 24, 2026. 15 days plus

two for electronic service from March 24, 2026, is April 10, 2016. The Motion was filed on April 8, 2026. Thus, the Motion is timely.

B.

Motion to Strike

Plaintiff moves to strike

Defendant's request for costs in the total amount of \$918.49 on the grounds that the memorandum of costs was untimely filed on March 24, 2026, five weeks past the deadline on February 24, 2026. Also, Plaintiff contends that Plaintiff's voluntary dismissal did not make Defendant a prevailing party. Finally, Plaintiff argues that Defendant's claimed costs are unnecessary and unreasonable.

First, a "prevailing party"

includes a defendant in whose favor a dismissal is entered. (Code Civ. Proc., § 1032, subd. (a)(4).) A prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Id. at § 1032, subd. (b).) Nor does Civil Code section 1794(d) prevent a seller as a prevailing party from recovering costs under section 1032(b). (Murillo v. Fleetwood Enterprises, Inc. (1998) 17 Cal.4th 985, 991.) A defendant in whose favor a dismissal is entered is the prevailing party and is entitled to costs regardless of whether the plaintiff voluntarily dismisses the case or the trial court orders an involuntary dismissal and whether the dismissal is with or without prejudice. (Cano v. Glover (2006) 143 Cal.App.4th 326, 331.)

Here,

Plaintiff voluntarily dismissed the entire case without prejudice. Thus, the dismissal was entered in Defendant's favor, and Defendant is the prevailing party entitled to costs.

Next, "[a]

prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, Rule 3.1700, subd. (a)(1).) It is an error to award costs where the memorandum of costs was untimely filed. (See Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 426 [concluding that the trial court erred in awarding costs where the

memorandum of costs was untimely filed following the dismissal of the complaint[.])

Here, the clerk entered the dismissal and provided notice on February 9, 2026. 15 days from February 9, 2026, is February 24, 2026. The memorandum of costs was not filed until March 24, 2026. Thus, the memorandum of costs was untimely filed. Accordingly, it would be an error to award costs to Defendant, and therefore the Motion to Strike is granted. (See *ibid.*)

Consequently, the Court need not address Defendant's argument regarding whether the costs were unreasonable or unnecessary.

IV. CONCLUSION

Based on the foregoing, the Court GRANTS the Motion to Strike Costs.

Moving party to give notice, unless waived.

Dated: July 30, 2026

Brock T. Hammond

Judge of the
Superior Court